

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

YANG MING TRANSPORT CO., *Respondent*.

DOCKET NO. 22-21

Served: April 5, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SECOND ORDER ON MOTION FOR RECONSIDERATION

On March 16, 2023, Complainant MSRF filed a Conditional Consent Motion to Amend Scheduling Order¹ (“Second Motion to Amend”) seeking an extension of time to comply with what it described as one outstanding discovery request, and to extend the due dates of the briefing for both parties. On March 17, 2023, Respondent Yang Ming filed Respondent’s Response to Complainant’s Motion to Amend Scheduling Order (“Response to Motion to Amend”). On March 20, 2023, a Second Amended Scheduling Order issued granting Complainant’s Second Motion to Amend, but only to the extent consistent with the second amended schedule, which allowed the discovery deadline for the final item to be moved to March 24, 2023 (a two-week extension as memorized in the March 3, 2023 Joint Status Report), and extended the period for all briefing by one month.²

On April 3, 2023, Respondent filed a Motion for Reconsideration where it asserts for the first time that in addition to travel conflicts in May 2023, one of Respondent’s counsel has health issues that prevent him from working more than 15-20 hours/week, impacting his ability to complete the brief in the one-month extended time frame provided in the Second Amended

¹ As has been noted previously, a “conditional consent motion” is not defined in the Federal Maritime Commission rules or by the Federal Rules of Civil Procedure. Use of the term “conditional consent” in the title of a motion is discouraged.

² Previously, the schedule was amended to close discovery on February 17, 2023, and for due dates for complainant’s brief, respondent’s opposition brief, and complainant’s reply brief to occur on March 21, 2023, May 2, 2023, and May 15, 2023, as proposed by the parties. Amended Scheduling Order, dated January 17, 2023. The schedule was amended a second time to allow Complainant to provide the last outstanding item of discovery (information regarding what shipments were refused by Yang Ming and whether MSRG requested space from other carriers), on March 24, 2023, and the briefing dates were extended to April 21, 2023, June 2, 2023, and June 16, 2023, respectively.

Scheduling Order. As further support for extending the briefing schedule, Respondent's Counsel asserts that they are a small firm with a large workload. Complainant indicated by email that it does not intend to file a response to Respondent's Motion for Reconsideration.

Having taken into consideration Respondent's most recent argument for extending its briefing, good cause has been provided to amend the schedule for briefing. Further requests to extend the schedule, whether jointly or individually requested, may not be granted. The parties are reminded that the date for an initial decision to issue in this case was set by the Commission for August 19, 2023.

The parties must file briefs in accordance with the requirements in the August 22, 2023, Initial Order and the October 13, 2022, Scheduling Order, with one change. The Commission is currently using Westlaw and, therefore, citations to judicial opinions on Lexis should include a parallel citation to Westlaw, if possible.

Good cause having been stated, it is hereby

ORDERED that Respondent's Motion for Reconsideration be **GRANTED**. It is

FURTHER ORDERED that the parties follow this schedule:

April 21, 2023	Complainant's Brief, Proposed Findings of Fact, and Appendix
June 14, 2023	Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
June 28, 2023	Complainant's Reply Brief and Responses to Respondent's Proposed Findings of Fact



Linda S. Harris Crovella
Administrative Law Judge